

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ABDELAZIZ ASAD,

Plaintiff,

-against-

Index No.:

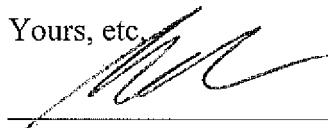
PLAINTIFF DESIGNATES KINGS
COUNTY AS THE PLACE OF THE
TRIALSUMMONSTHE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, SGT. FRANK
CINOLAURO (SHIELD #937), Individually and
in his Official Capacity, P.O. VINCENT
GUARDINO (SHIELD #10131), Individually and
in his Official Capacity, and P.O.'s "JOHN
DOE" #1-5, Individually and in their Official
Capacity (the name John Doe being fictitious, as the
True names are presently unknown)THE BASIS OF VENUE IS:
CPLR §504(3)Defendants.
-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not entered with this summons, to serve a notice of appearance, on the plaintiff's attorney, within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 26, 2019

Yours, etc.



LAW OFFICE OF GLENN M. RACEBy: Glenn M. Race, Esq.
954 Lexington Avenue, #331
New York, New York 10021
Attorneys for Plaintiff
ABDELAZIZ ASAD
P: 888.875.1059
F: 888.887.0073

Address of Defendants:

THE CITY OF NEW YORK and THE NEW YORK
CITY POLICE DEPARTMENT
c/o Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

SGT. FRANK CINOLAURO
SHIELD #937
NYC Police Department, 72nd Precinct
830 4th Avenue
Brooklyn, NY 11232

P.O. VINCENT GUARDINO
SHIELD #10131
NYC Police Department, 72nd Precinct
830 4th Avenue
Brooklyn, NY 11232

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ABDELAZIZ ASAD,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SGT. FRANK CINOLAURO (SHIELD #937), Individually and in his Official Capacity, P.O. VINCENT GUARDINO (SHIELD #10131), Individually and in his Official Capacity, and P.O.'s "JOHN DOE" #1-5, Individually and in their Official Capacity (the name John Doe being fictitious, as the True names are presently unknown)

Defendants.
-----X

Plaintiff, **ABDELAZIZ ASAD**, by his attorneys, **THE LAW OFFICE OF GLENN M. RACE**, as and for his Complaint against the Defendants, alleges as follows:

1. At all times hereinafter mentioned, Plaintiff, **ABDELAZIZ ASAD**, was an individual residing in the County of Richmond, City and State of New York.
2. At all times hereinafter mentioned, Defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly created and existing by and under the laws of the State of New York.
3. At all times hereinafter mentioned, Defendant, **THE CITY OF NEW YORK**, maintained the defendant, **THE NEW YORK CITY POLICE DEPARTMENT** (Hereinafter, "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal

Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, **SGT. FRANK CINOLAURO (SHIELD #937), P.O. VINCENT GUARDINO (SHIELD #10131) and P.O.s "JOHN DOE" #s1-5**, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment with Defendants, **THE CITY OF NEW YORK** and **NYPD**.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment with Defendants, **THE CITY OF NEW YORK** and **NYPD**.

8. On or about March 5, 2018 at approximately 1:50 P.M., Plaintiff, **ABDELAZIZ ASAD**, was lawfully present inside of his parked vehicle located in the vicinity of 3rd Avenue and 21st Street, in the County of Kings, City and State of New York.

9. At the aforesaid time and place, the defendant officers accosted Plaintiff and searched Plaintiff and his vehicle despite having no reasonable basis or probable cause to do same.

10. Defendant officers then placed Plaintiff under arrest and seized his vehicle.

11. Defendants placed Plaintiff in handcuffs with his arms tightly behind his back and then transported him to a nearby police precinct.

12. At no time on March 5, 2018, did Defendants possess probable cause to arrest Plaintiff.

13. At no time on March 5, 2018, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.

14. Upon being transported to a nearby precinct, Plaintiff was directed to submit to a breathalyzer analysis to determine the presence of alcohol in his blood, as well as submit to physical tests to determine whether he was under the influence of alcohol and/or narcotics, which said tests were performed in whole or in part by P.O. Campanello (Tax ID #948737) of the NYPD Highway Division Intoxicated Driver Testing Unit (IDTU).

15. Said breathalyzer examination revealed that Plaintiff had 0.0 % Blood Alcohol Content (BAC) and, additionally, Plaintiff passed all physical sobriety examinations performed by P.O. Campanello and/or other officers in the IDTU. The results of said examinations, confirming that Plaintiff was not under the influence of drugs or alcohol, were then transmitted to the defendant officers.

16. Despite having knowledge of the aforementioned results of the breathalyzer and physical tests, the defendants chose to charge Plaintiff with the crime of Operating a Motor Vehicle While Under the Influence of Alcohol or Drugs in violation of VTL §1192(4), a Class D Felony.

17. In connection with Plaintiff's arrest, the defendants filled out false and/or misleading police reports and forwarded same to the Kings County District Attorney's Office.

18. Thereafter, Defendants provided false and/or misleading statements to Assistant District Attorney(s) at the Kings County District Attorney's Office when interviewed with regard to the arrest and/or processing of Plaintiff.

19. As a result of his unlawful arrest, Plaintiff, **ABDELAZIZ ASAD**, was confined to a jail cell and made multiple Court appearances in connection with these charges before all charges against him were ultimately dismissed in their entirety on or about May 17, 2018.

20. As a result of the foregoing, Plaintiff, **ABDELAZIZ ASAD**, sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation and deprivation of his constitutional rights.

21. On May 23, 2019, Plaintiff duly served in writing to the Office of the New York City Comptroller, his Notice of Claim, as hereinafter described and set forth and upon which this action is founded for adjustment, and that more than 30 days have elapsed since that presentation of the claim. (See Notice of Claim, annexed as "**Exhibit 1**").

22. Plaintiff's Notice of Claim was served and duly filed with the Office of the New York City Comptroller within the time provided by law, and before the commencement of this action.

23. The Office of the New York City Comptroller has wholly neglected and refused to make an adjustment or payment of the claim for more than thirty days after its presentation.

24. This action was commenced within one year and ninety days after the cause of action accrued.

FOR A FIRST CAUSE OF ACTION- FALSE ARREST

25. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "24" with the same force and effect as if fully set forth herein.

26. As a result of the aforesaid conduct by the defendants, Plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege or consent.

27. By reason of such false arrest and confinement, Plaintiff's liberty was restricted for an extended period of time, he suffered emotional distress, mental anguish, as well as psychological injuries, humiliation, indignity, shame, damage to his reputation and loss of liberty and property.

AS AND FOR A SECOND CAUSE OF ACTION—MALICIOUS PROSECUTION

28. Plaintiff repeats and realleges each and every allegation set forth in paragraphs "1" through "27" with the same force and effect as if fully set forth at length herein.

29. After Plaintiff's unlawful arrest, the defendant officers, without probable cause and with actual malice, caused a criminal action to be commenced against the plaintiff under Kings County Criminal Court docket number 2018CK000836.

30. Defendants misrepresented and falsified evidence before the Kings County District Attorney.

31. Defendants did not make a complete and full statement of facts to the District Attorney.

32. Defendants withheld exculpatory evidence from the District Attorney.

33. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.

34. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.

35. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

36. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.

37. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.

38. Defendants acted with malice in continuing criminal proceedings against Plaintiff.

39. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

40. All charges against Plaintiff were dismissed on or about May 17, 2018.

41. By reason of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he suffered emotional distress, mental anguish as well as psychological injuries, humiliation, indignity, shame, damage to his reputation and loss of liberty.

AS AND FOR A THIRD CAUSE OF ACTION—NEGLIGENT HIRING

42. Plaintiff repeats and realleges each and every allegation set forth in paragraphs "1" through "41" with the same force and effect as if fully set forth at length herein.

43. The aforesaid false arrest and malicious presentation occurred due to the negligence of the defendants in failing to properly hire, train, supervise, and/or discipline the officers of the NYPD.

AS AND FOR A FOURTH CAUSE OF ACTION—VIOLATION OF CIVIL RIGHTS

44. Plaintiff repeats and realleges each and every allegation set forth in paragraphs “1” through “43” with the same force and effect as if fully set forth at length herein.

45. Defendants, **THE CITY OF NEW YORK and NYPD** have negligently failed to train, supervise and discipline their agents, servants and/or employees with regard to proper constitutional and statutory limits on their exercise of authority, proper procedures for performing their duties and proper methods of interacting with members of the public, including plaintiff.

46. This negligence by Defendants, **THE CITY OF NEW YORK and NYPD**, directly led to the events described herein.

47. By reason of the foregoing, defendants deprived the plaintiff of rights, privileges and immunities as granted under the United States Constitution, Amendments One, Four, and Fourteen, the New York State Constitution, and 42 U.S.C. § 1981, 1983, 1985, and 1986 and 1988; the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the agents, servants and/or employees of the NYPD.

48. After plaintiff was falsely arrested and confined as described above, he was subject to unlawful searches of his person and his possessions.

49. The actions of defendants heretofore described constitute assault; use of excessive force; false arrest; false imprisonment, malicious prosecution, negligent and intentional infliction of emotional distress; unreasonable search and seizure of plaintiff's person and property, and negligent hiring and training, and supervision and retention of the New York City Police Department and its officers all of which deprived the plaintiff of the rights, privileges and immunities granted under the United States Constitution, Amendments, One, Four, Five and

Fourteen, the New York Constitution and the Civil Rights Acts, 42 U.S.C. § 1981, 1983, 1986 and 1988, and the actions of the defendants were the result of either an official policy or an unofficial custom by Defendants, **THE CITY OF NEW YORK and NYPD**, including but not limited to policies and customs, concerning the hiring, training, supervision, retention and discipline of the **THE CITY OF NEW YORK and NYPD's** agents, servants and/or employees, and those policies and custom involving the arrest, detention and prosecution of individuals, including and especially, those persons such as the plaintiff of certain ethnic group.

50. That the defendants established a custom, policy and/or practice of encouraging, approving and/or tolerating misconduct against civilians in their custody.

51. That the defendants were deliberately indifferent to the use of improper procedures in the detention of civilians and established a policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by Defendant, **NYPD**.

52. That defendants failed to adequately train, supervise and discipline their agents, employees and officers.

53. That the actions of the officers who assaulted the plaintiff were undertaken under color of law and would not have occurred but for said defendants' use of their official power.

54. The defendants conspired with each other and acted in concert to discriminate against and deprive the plaintiff of his constitutional and civil rights.

55. The supervisors and policy making officers of Defendants, **THE CITY OF NEW YORK and NYPD**, as a matter of policy, are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

56. The defendants have failed to properly and effectively train their agents, servants and/or employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

57. The defendants have sanctioned the policies and practices heretofore described through their deliberate indifference to the effect of such policies and practices upon the constitutional rights of the plaintiff and others similarly situated.

58. That the defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

59. By reason of the foregoing, the plaintiff has been damaged and suffered serious and severe injuries including emotional distress and emotional harm, as a result of these deprivations of constitutional and civil rights.

60. As a result of all of the foregoing, Defendants have become liable to the plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff demands judgment against defendants on all causes of action in an amount which exceeds the monetary jurisdiction of all lower courts, the costs and disbursements of this action and such further relief as the Court deems just and proper.

Dated: New York, New York
February 25, 2019

LAW OFFICE OF GLENN M. RACE



By: Glenn M. Race, Esq.
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New York, New York 10021
Attorneys for Plaintiff:
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P: 888.875.1059
F: 888.887.0073

ATTORNEY VERIFICATION

STATE OF NEW YORK)
 : SS.
COUNTY OF NEW YORK)

I, Glenn M. Race, an attorney duly admitted to practice law in the State of New York, make the following affirmation under the penalties of perjury:

I am an attorney associated with the Law Office of Glenn M. Race, the attorneys of record for the plaintiff.

I have read the foregoing complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because plaintiff does not reside in the County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
February 25, 2019



Glenn M. Race, Esq.

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SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

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Defendants.

SUMMONS AND VERIFIED COMPLAINT

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Attorneys for Plaintiff

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New York, New York 10021

888.875.1059

Dated: February 26, 2019

THE LAW OFFICE OF GLENN M. RACE

Attorneys for Plaintiff

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New York, New York 10021


Glenn M. Race, Esq.